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118 **IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

CRWP-12640-2024(O&M)
Date of decision: 01.01.2025

ARBAJ AND ANOTHER**.....Petitioners****Versus****STATE OF HARYANA AND OTHERS****...Respondents****CORAM: HON'BLE MR. JUSTICE DEEPAK MANCHANDA**

Present: Mr. Khalid Tauru, Advocate, and
Mr. H.P.S. Rahi, Advocate,
for the petitioners.

**********DEEPAK MANCHANDA, J.(ORAL)**

1. The petitioners have approached this Court under Article 226 of the Constitution of India for seeking issuance of directions to respondents No.1 to 3 for protecting their lives and personal liberty from respondents No.4 to 13.

2. The contention of learned counsel for the petitioners is that the petitioner No.1, aged above 21 years and although petitioner No.2, aged 17 years 1 month 21 days but as per Muslim rites and customs is a marriageable age. In support thereof, copies of Aadhaar Cards pertaining to the petitioners and Matriculation Examination Certificate of petitioner No.2 have been appended. The learned counsel for petitioners further contends that they have performed marriage against the wishes of their parents and the marriage of the petitioners was solemnized on 19.12.2024 as per Muslim rites and customs. Copy of Marriage Certificate (Annexure P-3) has also been appended. He further contends that the petitioners apprehend threat to their lives and liberty and claim that there is a constant danger of being implicated in a false case, and even a representation



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respondent No.2, i.e. Superintendent of Police, Nuh (Mewat) but the same has not been decided till date and the petitioners would be satisfied if the said representation is decided in a time bound manner.

3. Notice of motion restricted to respondents No.1 to 3 only.
4. Pursuant to supply of advance copy, Mr. Vivek Chauhan, Addl. A.G., Haryana, accepts notice on behalf of respondents No.1 to 3 and has no objection if appropriate directions are given for deciding the representation submitted by the petitioners.
5. Therefore, without examining the question of legality and validity of the marriage and expressing any opinion thereon, the petition is disposed of with a direction to respondent No.2, i.e. Superintendent of Police, Nuh (Mewat) to look into the grievances of the petitioners as set out in the petition and also expressed in the representation (Annexure P-4) and take appropriate action for protection of their lives and liberty as may be warranted by the circumstances in accordance with law.
6. The Registry is directed to send a copy of this order along with copy of the petition to respondent No.2, i.e. Superintendent of Police, Nuh (Mewat) for requisite compliance.
7. Pending applications, if any, also stands disposed of.

01.01.2025
Jyoti Thakur

(DEEPAK MANCHANDA)
JUDGE

Whether speaking/reasoned
Whether reportable

Yes/No
Yes/No